

53	Phan vs. Bleu Restaurant and Dancing 24-01448536	Motion to Quash Service of Summons The Motion to Quash Service of Summons brought by Specially Appearing Defendant Kenney Nguyen is GRANTED, pursuant to Code of Civil Procedure section 418.10, subd. (a)(1). The service of the summons and complaint which was purportedly completed on December 21, 2025, as reflected in the Proof of Service filed on January 8, 2026 (ROA No. 62), is quashed. The Court notes that this order is limited to review of the above Proof of Service and does not address the newly filed Proof of Service, dated May 4, 2026 (ROA No. 75.) The Request for Judicial Notice made by Specially Appearing Defendant Kenney Nguyen (ROA No. 65) is GRANTED, pursuant to Evidence Code section 452, subdivision (d). “A defendant on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion...[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant....” (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 793.) “A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant.” (<i>Ruttenberg v. Ruttenberg</i> (1997) 53 Cal.App.4th 801, 808.) Additionally, “[w]hen a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.) A responding plaintiff is required to show “at least substantial compliance with the relevant statutory requisites for service....” (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1165.) Per the Proof of Service filed on January 8, 2026, Defendant Kenney Nguyen was personally served the summons and complaint on December 21, 2025, at 7112 Bluesails Drive in Huntington Beach, California. (ROA No. 62.) Notably, the Proof of Service was executed by a registered process server. (See ¶7(e)(3) of ROA No. 62.) “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647.) “Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.” (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) “Because of the statutory presumption, defendant was thus required to produce evidence that he was not served.” (<i>Ibid.</i>)
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54	Watts vs. Doyle 25-01520747	Motion to Set Aside/Vacate Default The Motion to Set Aside brought by Defendant Reena Doyle is conditionally GRANTED, pursuant to Code of Civil Procedure section 473, subdivision (b). Defendant Reena Doyle is ordered to file and serve an Answer to the Complaint within 7 days-notice of this order and, additionally, to confirm her address and agreed upon method of service. Upon completion of the above, default will be set aside. Alternatively, in the event an Answer is not filed within the above stated time-period, the motion is denied. “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, sub. (b).) “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken.” (Code Civ. Proc., § 473, sub. (b).) Initially, the instant motion was timely filed, less than two-months after entry of default. (See ROA Nos. 13 and 14.) The entirety of this motion is one paragraph offered by Defendant, under penalty of perjury, wherein Defendant requests relief pursuant to Code of Civil Procedure section 473, subdivision (b), on the basis “Defendant has been ill and unable to respond.” (See ROA No. 14 [capitalization altered from original].) Although <i>sparse</i>, the above is sufficient to demonstrate excusable neglect, for purposes of Code of Civil Procedure section 473, subdivision (b). “Excusable neglect exists when ‘a reasonably prudent person in similar circumstances might have made the same error.’” (<i>County of San Bernardino v. Mancini</i> (2022) 83 Cal.App.5th 1095, 1103.) As illness could prevent a reasonably prudent person from responding to litigation, relief is appropriate; however, Plaintiff correctly notes that Defendant failed to attach a proposed Answer to her motion, as required. (Code Civ. Proc., § 473, subd. (b).) To correct this deficiency, Plaintiff proposes conditioning relief on an Answer being filed within 7 days of the hearing. This proposal is reasonable and would result in statutory compliance, prior to default being set aside. While Plaintiff proposes only permitting 7 days for filing, this period is reasonable, given the record indicates Defendant has already prepared her Answer. (¶8-¶10 of Schueller Declaration.)